

26NNCV03717 26NNCV03717

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-11

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Case Number: 26NNCV03717 Hearing Date: September 11, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Leave to Intervene

Hearing Date: 9/11/26

CASE NO.: 26NNCV03717

NAME: Rafael Gomez Wilson v. Edward

Olshansky et al.

Moving Party: Proposed Intervenor Technology

Insurance Company, Inc.

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a worker's compensation action. On June 3, 2024, plaintiff Rafael Gomez Wilson (Plaintiff) was employed and working within the scope of his employment with Next Level Burger Company, Inc., dba Veggie Grill (Employer). Plaintiff was outside cleaning tables when a car crashed into the building, causing Plaintiff to hit a table and umbrella and sustain injuries (the Incident). On March 12, 2026, Plaintiff filed a Complaint against defendants Edward Olshansky, Galina Makovoz, 4300 Burbank, LLC, and DOES 1-100 (collectively, Defendants) alleging negligence.

Technology Insurance Company, Inc. (Technology) is the workers compensation provider of Employer and has been paying out worker's compensation insurance benefits to Plaintiff as a result of the Incident.

On July 24, 2026, Technology's previous motion to intervene was denied for insufficient service.

On July 29, 2026, Technology filed a renewed motion for leave to intervene in the action. On September 2, 2026, Technology filed a declaration addressing service. No opposition has been filed as of September 8, 2026.

LEGAL

STANDARD

An intervention takes place when a nonparty, an intervenor, seeks to become a party to an action or proceeding between other persons by joining a plaintiff in claiming what is sought by the complaint, joining a defendant in resisting the plaintiff's claims, or demanding anything adverse to both a plaintiff and a defendant. (Code Civ. Proc., § 387, subd. (b).)

"A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth

the grounds upon which intervention rests.” (Code Civ. Proc., § 387(c).)

If the nonparty timely files its application, then the court shall permit the nonparty to intervene in the action as long as either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene; (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties. (Code Civ. Proc., § 387, subd. (d)(1).)

Otherwise, the court may permit the nonparty to intervene in the action, as long as the motion is timely, if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. (Code Civ. Proc., § 387(d)(2).) This section is construed liberally “in favor of intervention.” (Simpson Redwood Co. v. State of California (1987) 196 Cal.App.3d 1192, 1200.) “For permissive intervention three factors are paramount: the intervenor must have a direct interest in the lawsuit, the intervenor must not enlarge the issues raised by the original parties[,] and the intervenor must not tread on the rights of the original parties to conduct their own lawsuit.” (Kuperstein v. Superior Court (1988) 204 Cal.App.3d 598, 600.)

There is no statutory time limit for filing a motion to intervene. (Noya v. A.W. Coulter Trucking (2006) 143 Cal.App.4th 838, 842.) “[T]he timeliness of a motion to intervene under section 387 should be determined based on the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented.” (Ziani Homeowners Assn. v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.) Intervention is possible at any time, even after judgment, if otherwise appropriate. (Mallick v. Superior Court (1979) 89 Cal.App.3d 434, 437.)

If intervention is granted, the intervenor must (1) separately file (a) a complaint-in-intervention, (b) answer-in-intervention, or (c) both and (2) serve all parties. (Code Civ. Proc., § 387, subd. (e).)

DISCUSSION

As of June 3, 2026, Technology has allegedly

paid out a total of \$13,945.25 to Plaintiff. (Kirsch Decl., ¶ 5.) Technology intervenes in this action on the grounds that it has an interest in the matter in litigation, and in the outcome of the litigation, consisting of (a) a worker's compensation subrogation lien over and against any settlement or judgment award to Plaintiff and (b) a credit against future worker's compensation liability in the amount of Plaintiff's recovery from Defendants.

Procedural Requirements

The

Court notes that Technology has complied with the statutory requirements of the Code of Civil Procedure, section 387. Technology has petitioned the Court with a noticed motion including a copy of the proposed Complaint in Intervention setting forth the ground upon which intervention rests. (Kirsch Decl., Exh. A.)

Right to Intervene

Technology

argues that they have an absolute right to intervene at any time before trial pursuant to California Labor Code section 3850. (Mot., p. 4.) Alternatively, Technology argues they have the permissive right to intervene pursuant to Code of Civil Procedure section 387(d)(1)(B). (Ibid.) Technology argues that the worker's compensation subrogation lien interests arise from the Incident and the Incident is the subject of this litigation. (Ibid.) Moreover, Technology argues that no other party is representing their interests, thus the court should permit Technology to intervene in the action. (Mot., p. 5.)

Here, Technology claims an interest in the form of a lien relating to the Incident that is the subject of the action and the disposition of the action may impair or impede Technology's ability to protect that interest since no one currently involved in the action is representing their interests. (Kirsch Decl., ¶ 5.) Thus, Technology should be permitted to intervene pursuant to Code of Civil Procedure section 378(d)(1)(B).

Sufficient Service

In civil cases involving both represented and self-represented parties, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise. (Cal. Rules of Court, rule 2.253(b)(3).)

A self-represented party may express consent to electronic service by either (1) serving a notice on all parties and filing the notice with the court, or (2) manifesting affirmative through electronic means with the court and concurrently providing the party's electronic address. (Code Civ. Proc., § 1010.6(c)(3).) The act of electronic filing shall not be construed as express consent. (Ibid.) Here, the Court finds no record of Plaintiff, who is a pro per litigant, consenting to electronic service.

Here, Plaintiff has still not consented to electronic service, however, Technology has mailed physical copies of the noticed motion and accompanying documents to Plaintiff's address (See Proof of Service filed 7/29/26 and 9/2/26.) Further, Technology declares having spoken to Plaintiff in order to confirm the provided address is current and accurate. (Kirsch Decl., ¶¶ 3-5.) Thus, Technology has cured defective service by providing service to pro per Plaintiff via non-electronic means.

Accordingly, the motion for leave to intervene is GRANTED.

CONCLUSION
AND ORDER

Technology Insurance Company, Inc.'s Motion
for Leave to Intervene is GRANTED.

MOVING PARTY shall provide notice and
provide a proposed order consistent with this ruling within 10 days from this
date.